

cause of action was sufficiently stated. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

III. Motion to Stay

Defendants have also moved to stay this action pending resolution of several probate matters and one forcible detainer matter. Plaintiff opposes the motion. The motion is **denied**.

Defendants' premise for a stay is that the "validity of the competing trust, to wit the 2023 Trust and 2017 Trust may justify or fail to justify the actions taken by defendants in this case." As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Further, as pointed out in a footnote, the surplus funds at issue here were not issued to a trust, but to decedent herself. The validity of competing trusts is not crucial to the outcome here. Should any determination regarding such validity be made in the probate cases, parties may provide it to the Court and the Court will address its effects at that time. A determination would not necessarily vindicate the defendants' actions in this case or resolve plaintiff's claims.

12. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
***HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING RESOLUTION OF THE RELATED CONSOLIDATED ACTIONS**
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: C25-00404
CASE NAME: NATALIIA VIENTSKOVSKA VS. THEKEY MANAGEMENT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSHUA I. WHITE**
FILED BY: VIENTSKOVSKA, NATALIIA
TENTATIVE RULING:

Summary

Plaintiff's counsel, Laurel Employment Law, PC, by and through Joshua I. White and Mae-Elaine Delos Santos ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff Nataliia Vientkovska ("Motion"). The Motion is **granted** as set forth herein.

Background

This case alleges Labor Code violations by Plaintiff Vientkovska ("Plaintiff") against Defendant Thekey Management LLC. This matter is stayed pending arbitration. On December 4, 2025, Withdrawing Counsel filed a Motion to Be Relieved as Counsel, supported by her declaration claiming that "irreparable breakdown in the attorney-client relationship" has occurred. Withdrawing Counsel can no longer represent Plaintiff.